

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Trevor Hackett	Team: Squad #08	CCRB Case #: 202106772	☐ Force ☐ Discourt. ☒ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 11/07/2021 10:07 PM, Monday, 11/08/2021 2:00 PM, Wednesday, 05/18/2022 9:27 AM, Tuesday, 05/24/2022 8:51 AM	Location of Incident: KFC restaurant at 2026 Coney Island Avenue; 61st Precinct Stationhouse	18 Mo. SOL 5/8/2023	Precinct: 61
Date/Time CV Reported Mon, 11/08/2021 12:47 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 11/08/2021 12:47 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Smithu Samuel	02294	933322	061 PCT
2. PO John Viloriomartinez	20826	968178	061 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. An officer			
2. PO Christopher Alvarado	13479	933607	061 PCT
3. PO Andrew Yuen	20061	969436	061 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Smithu Samuel	Abuse: On November 7, 2021, at 2026 Coney Island Avenue, Sergeant Smithu Samuel stopped § 87(2)(b)	A . Exonerated
B . SGT Smithu Samuel	Abuse: On November 7, 2021, at 2026 Coney Island Avenue, Sergeant Smithu Samuel refused to provide his name to § 87(2)(b)	B . Exonerated
C . SGT Smithu Samuel	Abuse: On November 8, 2021, at the 61st Precinct Stationhouse, Sergeant Smithu Samuel refused to provide his name to § 87(2)(b)	C . Substantiated
D . SGT Smithu Samuel	Abuse: On November 8, 2021, at the 61st Precinct Stationhouse, Sergeant Smithu Samuel refused to provide his shield number to § 87(2)(b)	D . Substantiated
E . PO John Viloriomartinez	Abuse: On November 8, 2021, at the 61st Precinct Stationhouse, Police Officer John Viloriomartinez refused to provide his name to § 87(2)(b)	E . Substantiated
F . PO John Viloriomartinez	Abuse: On November 8, 2021, at the 61st Precinct Stationhouse, Police Officer John Viloriomartinez refused to provide his shield number to § 87(2)(b)	F . Substantiated
G . SGT Smithu Samuel	Abuse: On November 8, 2021, at the 61st Precinct Stationhouse, Sergeant Smithu Samuel did not process § 87(2)(b)'s complaint regarding an officer.	G . Substantiated
H . SGT Smithu Samuel	Untruthful Stmt.: On May 18, 2022, at 100 Church Street in Manhattan, Sergeant Smithu Samuel provided a false official statement to the CCRB.	H . Substantiated

Officer(s)	Allegation	Investigator Recommendation
I . PO John Viloriomartinez	Untruthful Stmt.: On May 24, 2022, at 100 Church Street in Manhattan, Police Officer John Viloriomartinez provided a false official statement to the CCRB.	I . Substantiated

Case Summary

On November 8, 2021, § 87(2)(b) filed this complaint via the CCRB call processing system.

On November 7, 2021, at approximately 10:07 PM, § 87(2)(b) who is an Uber Eats driver, went to pick up and order at the KFC located at 2026 Coney Island Avenue in Brooklyn. § 87(2)(b) and a KFC employee engaged in a physical altercation which resulted in § 87(2)(b) § 87(2)(b) Sergeant Smithu Samuel of the 61st Precinct arrived at the location and handcuffed § 87(2)(b) (**Allegation A: Abuse of Authority, exonerated**). Before being transported to the hospital, § 87(2)(b) requested Sgt. Samuel's name, which he did not provide (**Allegation B: Abuse of Authority, exonerated**).

On November 8, 2021, at approximately 2:00 PM, § 87(2)(b) went to the 61st Precinct stationhouse to file a criminal complaint against the KFC worker from the previous evening. § 87(2)(b) spoke with Sgt. Samuel and PO John Viloriomartinez, also of the 61st Precinct, who refused to provide their names and shield numbers to § 87(2)(b) (**Allegations C, D, E and F: Abuse of Authority, substantiated**). § 87(2)(b) briefly left the stationhouse, then returned to file a complaint against Sgt. Samuel. § 87(2)(b) spoke with PO Andrew Yuen, who refused to process § 87(2)(b)'s complaint at the instruction of Sgt. Samuel (**Allegations G: Abuse of Authority, substantiated**).

During his CCRB interview on May 18, 2022, Sgt. Samuel provided a false official statement to the CCRB (**Allegation H: Untruthful Statement, substantiated**). On May 24, 2022, PO Viloriomartinez provided a false official statement to the CCRB (**Allegation I: Untruthful statement, substantiated**).

No summons or arrest resulted from either of these incidents.

Body Worn Camera was obtained from Sgt. Samuel, PO Ajay Edwards, PO Adnand Misku, PO Paul Gaines, and PO Nicholas Lynch regarding the November 7, 2021, incident. The footage is located in IAs #31-35 and summarized in IA #51 (**Board Review 01, 02, 03, 04, 05, 06**). Stationhouse footage of the November 8, 2021 incident was obtained and is located in IAs #69 and 70 and summarized in IA #55 (**Board Review 07, 09, 09**). Cell phone video recorded by § 87(2)(b) of the November 8, 2021 incident was obtained and is located in IAs #26 and 27 and summarized in IA #88 (**Board Review 10, 11, 12**).

Allegation A: On November 7, 2021, at 2026 Coney Island Avenue in Queens, Sergeant Smithu Samuel stopped § 87(2)(b)

BWC footage from Sgt. Samuel shows, at 01:00, visible on the media player at the bottom of the screen, Sgt. Samuel speaks to a man outside the restaurant. Sgt. Samuel asks why § 87(2)(b) is behind the counter. The man states that § 87(2)(b) pushed an employee, then the employee and § 87(2)(b) slapped each other, though the specifics are unclear. At 01:12, § 87(2)(b) can be seen leaning over behind the counter. He states that his arm is broken. At 01:24, Sgt. Samuel handcuffs § 87(2)(b) who tells him that he has a dislocated shoulder. § 87(2)(b) starts screaming in pain as he is handcuffed. Sgt. Samuel leads § 87(2)(b) in front of the counter. § 87(2)(b) repeatedly tells Sgt. Samuel that he is in pain and states that he needs EMS. At 02:15, § 87(2)(b) who is sitting behind Sgt. Samuel, asks for Sgt. Samuel's name three times. While § 87(2)(b) is making this request, Sgt. Samuel is asking an employee for their account of the incident. The employee says that § 87(2)(b) got into a dispute with the manager over an order of crispy chicken and that § 87(2)(b) threatened to slap the manager. The manager walked in front of the counter and dared § 87(2)(b) to slap her, which he did. The manager

then pulled § 87(2)(b) back behind the counter. At 04:20, The man and the manager both tell Sgt. Samuel that § 87(2)(b) started pushing the manager after the manager told him to stop recording her. The manager then dragged § 87(2)(b) behind the counter. § 87(2)(b) also allegedly kicked the manager. § 87(2)(b) was allegedly asked to leave several times by the manager but refused. At 07:37, EMS arrives on scene, Sgt. Samuel explains the situation, and says that § 87(2)(b) appears to be deranged and may be over-exaggerating his injuries. Sgt. Samuel stated that he handcuffed § 87(2)(b) because he was the only officer on scene and because § 87(2)(b) had instigated a physical altercation. EMS ultimately transported § 87(2)(b) to the hospital, § 87(2)(b) (Board Review 01).

§ 87(2)(b) § 87(2)(g) stated that the KFC manager, not him, instigated the physical altercation prior to Sgt. Samuel arriving at the scene. § 87(2)(b) refused to provide any details of the conversations between Sgt. Samuel and the witnesses at the scene and said that they were lying about what happened. § 87(2)(b) did not know why he was detained but believed Sgt. Samuel told him it had something to do with him being behind the counter in the employee area (Board Review 13).

Contact attempts were made to the KFC to obtain surveillance footage; however it could not be determined whether their security cameras were operational at the time of the incident. The investigation did not obtain any statements from the KFC employees, as Sgt. Samuel's BWC footage captured the relevant portions of his interaction with § 87(2)(b).

§ 87(2)(g) Sgt. Samuel received a call over the radio of a disorderly individual at the incident location. Sgt. Samuel handcuffed § 87(2)(b) as he observed him behind the counter in the employee area, where he should not have been, shouting at the employees. § 87(2)(b) was complaining of injuries to his arms, though Sgt. Samuel observed that he was moving his arms normally and did not appear to be injured. § 87(2)(b) was yelling and screaming during the incident and said that he wanted to file a police report for receiving bad service, which did not make sense to Sgt. Samuel. Sgt. Samuel stated that because § 87(2)(b) had gone behind the counter into the employee area, he could be charged with criminal trespassing. Sgt. Samuel ultimately exercised his discretion and did not arrest § 87(2)(b) because the KFC employee involved in the dispute could not decide whether she wanted to press charges. § 87(2)(b) continued screaming throughout the incident, so Sgt. Samuel decided to call EMS to have § 87(2)(b) evaluated, and if necessary, taken to the hospital for a psychological evaluation, which ultimately happened § 87(2)(b) did not allege that he was forcibly removed to the hospital and BWC footage shows he requested medical attention due to his dislocated shoulder. § 87(2)(g) (Board Review 14).

To stop an individual, officers must possess reasonable suspicion that the person has committed, is committing, or is about to commit a crime. People v. DeBour, 40 N.Y. 2d 210 [1976] (Board Review 15) New York Penal Law 140.10 states: A person is guilty of criminal trespass in the third degree when he knowingly enters or remains unlawfully in a building or upon real property which is fenced or otherwise enclosed in a manner designed to exclude intruders (Board Review 16).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) . It is therefore recommended that **allegation A** be closed as **exonerated**.

Allegation B – Abuse of Authority: On November 7, 2021, at 2026 Coney Island Avenue in Queens, Sergeant Smithu Samuel refused to provide his name to § 87(2)(b) .

BWC from Sgt. Samuel shows, at 02:15, § 87(2)(b) who is sitting behind Sgt. Samuel, asks for Sgt. Samuel's name three times. While § 87(2)(b) is making this request, Sgt. Samuel is interviewing a witness and does not respond to § 87(2)(b)'s requests (**Board Review 01**).

§ 87(2)(g) § 87(2)(b) acknowledged that Sgt. Samuel was speaking with an employee when he requested his name (**Board Review 13**).

Sgt. Samuel initially stated that he did not recall § 87(2)(b) requesting his name during the incident, though he acknowledged that this did occur after reviewing his BWC footage and stated that he did not provide his name to § 87(2)(b) because he was busy interviewing a witness. Sgt. Samuel also stated that he had stopped listening to § 87(2)(b) as he had been screaming and making profane remarks throughout the incident (**Board Review 14**).

Patrol Guide Procedure 203-09 requires officers to courteously and clearly state their rank, name, shield number, and command, or otherwise provide them to anyone who requests the information (**Board Review 17**).

§ 87(2)(g) . It is therefore recommended at **allegation B** be closed as **exonerated**.

Allegation C – Abuse of Authority: On November 8, 2021, at the 61st Precinct Stationhouse, Sergeant Smithu Samuel refused to provide his name to § 87(2)(b) .

Allegation D - Abuse of Authority: On November 8, 2021, at the 61st Precinct Stationhouse, Sergeant Smithu Samuel refused to provide his shield number to § 87(2)(b) .

Allegation E – Abuse of Authority: On November 8, 2021, at the 61st Precinct Stationhouse, Police Officer John Viloriomartinez refused to provide his name to § 87(2)(b) .

Allegation F – Abuse of Authority: On November 8, 2021, at the 61st Precinct Stationhouse, Police Officer John Viloriomartinez refused to provide his shield number to § 87(2)(b) .

Allegation G – Abuse of Authority: On November 8, 2021, at the 61st Precinct Stationhouse, Sergeant Smithu Samuel refused to process § 87(2)(b)'s complaint regarding an officer.

§ 87(2)(g) .

§ 87(2)(b) provided the investigation with two cellphone videos. The videos capture a segment of his interactions with officers at the stationhouse. The first video shows, at 00:00, § 87(2)(b) speaking to Sgt. Samuel outside the front door of the stationhouse. § 87(2)(b) requests Sgt. Samuel's name and shield number. Sgt. Samuel says, "Sir, listen to me. You can read?" § 87(2)(b) then reads Sgt. Samuel name and shield number aloud. Sgt. Samuel then

says, "goodbye" and repeatedly orders § 87(2)(b) to leave the premises (**Board Review 11**). The footage in the second video overlaps with the end of the first and shows, at 00:00, Sgt. Smith orders § 87(2)(b) to leave the premises, then turns to walk back inside the stationhouse. § 87(2)(b) then points his camera towards PO Viloriomartinez, who is gesturing for him to leave. The camera continues to follow PO Viloriomartinez as § 87(2)(b) requests his name and shield number, which he does not provide. PO Viloriomartinez escorts § 87(2)(b) to the sidewalk, then turns to walk back to the stationhouse (**Board Review 10**).

61st Precinct stationhouse footage shows, at 02:15:58 (02:15:58 PM) § 87(2)(b) entering the vestibule/lobby area. At 03:08:56, PO Yuen enters the lobby and speaks with § 87(2)(b). PO Yuen then exits the vestibule area and later returns and speaks with several other civilians in the vestibule area. At 03:23:08, PO Viloriomartinez enters the vestibule area and gestures for § 87(2)(b) to follow him outside, which he does. At 03:23:43, Sgt. Samuel enters the lobby while § 87(2)(b) is still outside speaking with PO Viloriomartinez. He then walks outside to where § 87(2)(b) and the other officers are speaking. This segment of the footage covers the period in time captured by § 87(2)(b)'s cell phone videos. At 03:29:30, Sgt. Samuel walks back inside. § 87(2)(b) can still be seen outside through the front door. § 87(2)(b) walks out of view of the front door and the other officers return inside. At 03:46:30, § 87(2)(b) returns to the vestibule and speaks with an officer there. He then begins to fill out a form. At 03:56:50, PO Yuen returns to the vestibule and speaks with § 87(2)(b) who appears to look at the form he is holding several times during the interaction. At 03:59:41, PO Yuen leaves the vestibule area and walks into the stationhouse. The footage ends at 04:00:00 with § 87(2)(b) waiting in the vestibule area (**Board Review 07**).

§ 87(2)(b) stated that on November 8, 2021, at approximately 2:00 PM, he went to the 61st Precinct stationhouse to file a criminal complaint against the KFC worker with whom he had the physical altercation the previous evening. Additionally, § 87(2)(b) wished to file a complaint against Sgt. Samuel. § 87(2)(b) spoke with an officer and informed him of why he was at the stationhouse. The officer notified PO Yuen, who came to the vestibule area and spoke with § 87(2)(b). PO Yuen informed § 87(2)(b) that he could not process his complaint against Sgt. Samuel as it would be a conflict of interest. § 87(2)(b) continued waiting in the lobby as he still wished to file a complaint against the KFC employee. Approximately an hour and a half later, Sgt. Samuel appeared in the vestibule area and § 87(2)(b) told him that he wanted to file a report about being assaulted the previous night. § 87(2)(b) did not tell Sgt. Samuel that he wished to file a complaint against him at any point during their interaction. Sgt. Samuel told § 87(2)(b) that they could talk outside the stationhouse. Once outside, Sgt. Samuel stated that he was not going to allow § 87(2)(b) to file a report for the assault because he knew § 87(2)(b) was lying about the incident. § 87(2)(b) asked Sgt. Samuel to provide his name and shield number. Sgt. Samuel did not verbally provide this information and instead stated "Can't you read?" § 87(2)(b) believed that Sgt. Samuel meant that he should be able to read it from his shield and name plate. § 87(2)(b) who was recording on his cell phone at the time, was able to read this information on Sgt. Samuel uniform. Sgt. Samuel then ordered § 87(2)(b) to leave the stationhouse. PO Viloriomartinez, who was also standing outside the stationhouse, then placed his hand on the left side of § 87(2)(b)'s torso and escorted him down the walkway to the sidewalk. As he was being escorted off the premises, § 87(2)(b) requested PO Viloriomartinez' name and shield number, which he did not provide. § 87(2)(b) left the location and did not have any further interaction with the officers (**Board Review 13**).

§ 87(2)(g) While speaking to § 87(2)(b) outside the stationhouse, Sgt. Samuel said he did not understand why he wanted to file a report against the KFC employee as he was the aggressor in that incident. Sgt. Samuel told § 87(2)(b)

§ 87(2)(b) that he did not have any evidence that he was the victim of anything and told him that he was not going to file a report. This upset § 87(2)(b) who began yelling, screaming, and waving his arms, though he could not specifically recall what § 87(2)(b) was saying. Sgt. Samuel told § 87(2)(b) that he could file a CCRB complaint against him if he wanted to and that he could take a picture of his shield. § 87(2)(b) did not tell Sgt. Samuel that he wished to file a CCRB complaint, and he was not aware of § 87(2)(b) attempting to file a CCRB complaint at the stationhouse at any other time that day. Sgt. Samuel did not recall whether § 87(2)(b) asked him, or any other officer, for their names and shield numbers during the incident. After reviewing § 87(2)(b)'s cell phone footage, Sgt. Samuel stated that he did not verbally provide this information because he told § 87(2)(b) that he could take a picture of it, which he did. When asked how he knew that § 87(2)(b) had taken the picture, Sgt. Samuel stated that § 87(2)(b) was holding his phone close to him and was pointing it at his uniform (**Board Review 14**).

PO Viloriomartinez § 87(2)(g) stated that § 87(2)(b) did not ask for his name or shield number during the interaction. PO Viloriomartinez reviewed the second cell phone video and stated that this footage depicts § 87(2)(b) asking Sgt. Samuel for his name and shield number and not PO Viloriomartinez. PO Viloriomartinez then reviewed the first cell phone video, which covers the period in time just before PO Viloriomartinez escorts § 87(2)(b) from the stationhouse. The footage captures § 87(2)(b) asking Sgt. Samuel for his name and shield number before reading it aloud. Sgt. Samuel then says "goodbye," and gestures for § 87(2)(b) to leave. PO Viloriomartinez then watched both videos back-to-back and again stated that § 87(2)(b) did not ask him for his name and shield number, and instead was asking for Sgt. Samuel to provide this information again. PO Viloriomartinez was not aware of § 87(2)(b) attempting to file a complaint against Sgt. Samuel at any point on the incident date (**Board Review 18**).

§ 87(2)(g) PO Yuen, who was assigned as the TS operator on the incident date, observed § 87(2)(b) waiting in the vestibule area of the stationhouse and approached § 87(2)(b) to assist him. § 87(2)(b) stated that he wished to file a complaint against an officer, though he did not state who the officer was. PO Yuen was not aware of § 87(2)(b) having any interaction with Sgt. Samuel prior to this point. PO Yuen went to the front desk and notified Sgt. Samuel of § 87(2)(b)'s request. Sgt. Samuel told PO Yuen to inform § 87(2)(b) that he could file the complaint over the phone or by mail with the CCRB, but that they could not take his complaint at the stationhouse. Sgt. Samuel did not provide a reason for why the complaint could not be processed at the stationhouse. PO Yuen stated that the vestibule area is visible through a glass window from the front desk. PO Yuen returned to § 87(2)(b) directed his attention to a sign on the vestibule area wall which listed the CCRB's contact information, and said that his complaint could not be filed at the stationhouse. § 87(2)(b) became upset and began speaking in an elevated tone. PO Yuen told § 87(2)(b) that he could not help him and asked him to leave twice, which § 87(2)(b) did not do. Sgt. Samuel then entered the vestibule area with PO Viloriomartinez and PO Yuen returned to his desk. PO Yuen did not have any further interaction with § 87(2)(b) but was later told by PO Viloriomartinez that he and Sgt. Samuel escorted § 87(2)(b) out of the stationhouse. PO Yuen stated that civilians are usually able to file a complaint against an officer at the stationhouse, but in this instance, he did not allow § 87(2)(b) to do so because Sgt. Samuel had instructed him not to (**Board Review 19**).

Patrol Guide Procedure 203-09 requires officers to courteously and clearly state their rank, name, shield number, and command, or otherwise provide them, to anyone who requests the information (**Board Review 17**). Patrol Guide Procedure 207-31 requires that civilians be allowed to file

complaints against officers in person at the stationhouse. Officers must ensure that the civilian receives a complaint form, and the civilian should be interviewed if they wish to file the complaint at that time. If the civilian does not want to file the complaint immediately, officers must still provide a complaint form and must advise the civilian that they can file their complaint in person, over the phone, or by mail with any patrol precinct, PSA, transit district, or traffic unit, and that they can file it with IAB or any other office of the Department. In addition, officers who encounter a civilian at the stationhouse who asks to make a complaint against officers or merely requests a complaint form must also advise the desk officer or another supervisor, so that they can immediately make a Command Log entry. Such entry must include the civilian's name, if provide, their physical description, and any other pertinent information (**Board Review 20**).

§ 87(2)(g)

it is recommended that allegation **C and D** be closed as **substantiated**.

§ 87(2)(g)

it is recommended that **allegations E and F** be closed as **substantiated**.

§ 87(2)(g)

. It is therefore recommended that **allegation G** be closed as **substantiated**.

Allegation H – Untruthful Statement: On May 18, 2022, at 100 Church Street in Manhattan, Sergeant Smithu Samuel provided a false official statement to the CCRB.

Allegation I – Untruthful Statement: On May 24, 2022, at 100 Church Street in Manhattan, Police Officer John Viloriomartinez provided a false official statement to the CCRB.

§ 87(2)(g)

Sgt. Samuel stated that when § 87(2)(b) became upset because Sgt. Samuel would not allow him to file a criminal complaint against the KFC worker from the night before, he told § 87(2)(b) that he could file a CCRB complaint against him if he wished to do so. Sgt. Samuel stated that § 87(2)(b) did not state that he wished to file a CCRB complaint against him, and that he was unaware of § 87(2)(b) attempting to file a complaint against him at the stationhouse at any point that day. § 87(2)(g)

t.

During his CCRB interview, PO Viloriomartinez was shown cell phone video in which § 87(2)(b) is pointing his camera at PO Viloriomartinez and requests his name and shield number. PO Viloriomartinez stated that § 87(2)(b)'s requests were not directed towards him, but Sgt. Samuel. PO Viloriomartinez was then shown both cell phone videos back-to-back, which show that § 87(2)(b) obtains Sgt. Samuel's name and shield number. § 87(2)(b) then turns his camera away from Sgt. Samuel, who turns around to walk back into the stationhouse, and directs it at PO Viloriomartinez before asking for his name and shield number. When asked again why he did not respond to § 87(2)(b)'s request for his information, PO Viloriomartinez again stated that § 87(2)(b) was speaking to Sgt. Samuel and not him.

According to Patrol Guide Procedure 203-08, a false official statement is defined as an intentional statement that a member of service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made. A material fact is a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. It is a fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. A material fact may be distinguished from an insignificant, trivial, or unimportant detail (**Board Review 21**).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **allegation H** be closed as **substantiated**.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] it is recommended that **allegation I** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**Board Review 22**).
- Sgt. Samuel has been a member of service for 19 years and has been a subject in six additional CCRB complaints and ten additional allegations, none of which were substantiated. § 87(2)(g) [REDACTED].
- PO Viloriomartinez has been a member-of-service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On July 29, 2022, a notice of claim request was submitted to the New York City Office of the Comptroller. The results will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad: 8

Investigator: Trevor Hackett Inv. Trevor Hackett 07/29/2022
Signature Print Title & Name Date

Squad Leader: Ethan De Angelo IM Ethan De Angelo 8/2/2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date